

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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JAYLEN HUDGINS,

Plaintiff,

-against-

**SUMMONS**THE CITY OF NEW YORK, POLICE OFFICER  
ROBERT MALDONADO, Shield No. 20175, SERGEANT  
JASON GREGORY, and POLICE OFFICERS JOHN  
DOES NUMBERS ONE THROUGH TEN,

Index No.:

The Basis of Venue is:  
Location of Incident

Defendants.

Plaintiff designates KINGS  
County as the place of trial.

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**To the above named Defendants:**

**You are hereby summoned** to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
May 23, 2019

Yours, etc.

\_\_\_\_\_  
/s/JACOBS & HAZAN, LLP.  
STUART E. JACOBS, ESQ.  
Attorney for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, New York 10007  
(212) 577-2690TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007  
POLICE OFFICER ROBERT MALDONADO, Shield No. 20175, 84<sup>th</sup> precinct, 301  
Gold St, Brooklyn, NY 11201  
SERGEANT JASON GREGORY, 84<sup>th</sup> Precinct, 301 Gold St, Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

----- X

JAYLEN HUDGINS,

Plaintiff,

**INDEX NO.:**

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER  
ROBERT MALDONADO, Shield No. 20175, SERGEANT  
JASON GREGORY, and POLICE OFFICERS JOHN  
DOES NUMBERS ONE THROUGH TEN,

**JURY TRIAL DEMANDED**

Defendants.

----- X

Plaintiff, JAYLEN HUDGINS, by her attorneys, Jacobs & Hazan, LLP, as and for her  
Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 10, 2018, at approximately 2:00 p.m., plaintiff, while lawfully in the vicinity of 417 Fulton Street, Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Additionally, plaintiff was subjected to an assault, battery, and use of excessive force by the defendant officers when the defendant police officers' maced plaintiff and punched her in the face. Plaintiff was maliciously prosecuted and denied the right to due process and a fair trial until charges against plaintiff were dismissed and sealed on July 9, 2018. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, assaulted, battered, subjected to excessive force, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

## **PARTIES**

2. Plaintiff JAYLEN HUDGINS is a resident of the state of New York.

3. Plaintiff JAYLEN HUDGINS is 18 years old.

4. POLICE OFFICER ROBERT MALDONADO, Shield No. 20175, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. POLICE OFFICER ROBERT MALDONADO, Shield No. 20175, was at all times relevant herein, assigned to the 84<sup>th</sup> precinct.

6. POLICE OFFICER ROBERT MALDONADO, Shield No. 20175, is being sued in his individual and official capacity.

7. SERGEANT JASON GREGORY, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. SERGEANT JASON GREGORY, was at all times relevant herein, assigned to the 84<sup>th</sup> precinct.

9. SERGEANT JASON GREGORY, is being sued in his individual and official capacity.

10. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

11. Police Officers John Does #1-10 are being sued in their individual and official capacities.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

15. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on August 20, 2018.

16. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

19. On January 10, 2018, at approximately 2:00 p.m., plaintiff was lawfully present in the vicinity of 417 Fulton Street, Brooklyn, New York Brooklyn, New York, when the defendant police officers unlawfully stopped, questioned, frisked, assaulted, battered, and falsely arrested plaintiff without probable cause or legal justification.

20. By way of background, on January 10, 2018, at approximately 2:00 p.m., plaintiff had just left school and was walking with a friend when several defendant police officers arrived at the subject location to respond to a dispute between other teenagers.

21. Notably, plaintiff was not involved in the dispute that caused the police officers to respond to said location.

22. Nevertheless, without provocation or legal justification, the defendant police officers maced plaintiff in her face causing her to suffer serious physical injuries, included but not limited to, burning to her eyes and face.

23. After being maced in the eyes, plaintiff could not see and a friend of plaintiff's was trying to guide her to get water to wash her eyes out.

24. While plaintiff was blinded and was being guided by her friend, without provocation or legal justification, the defendant police officers pushed plaintiff, threw her up against a wall, punched her in the face and threw her down to the ground.

25. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the police officer have an objective reason to accuse plaintiff committing a crime or violating the law in any way.

26. At no point in time did plaintiff resist arrest in any way.

27. Nevertheless, plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

28. The defendant police officers transported plaintiff to the 84<sup>th</sup> Precinct against her will, where plaintiff was unlawfully photographed, fingerprinted and detained in a holding cell.

29. While plaintiff was at the 84<sup>th</sup> precinct, the defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff committed a crime.

30. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendant police officers in the criminal court complaint, defendants maliciously initiated a prosecution against plaintiff without probable cause, and as a result plaintiff was falsely charged with Disorderly Conduct, among other charges.

31. Specifically, in order to justify the unlawful use of force used against the plaintiff by the defendant police officers, the defendant police officers falsely stated to the District Attorney's Office that plaintiff refused to leave the location and that she resisted arrest.

32. On January 10, 2018, at approximately 11:30 p.m., after 10 hours in unlawful custody, plaintiff was arraigned in Kings County Criminal Court, charged with crimes that the defendant officers had no basis to alleged that he committed.

33. At arraignment, based upon the false allegations sworn in the criminal court complaint, plaintiff was charged Disorderly Conduct, Obstructing Governmental Administration, and Resisting Arrest.

34. On January 10, 2018, plaintiff appeared in Court and the Judge released plaintiff from custody on her own recognizance.

35. As a result of the injuries inflicted upon plaintiff by the defendant police officers, plaintiff was forced to seek medical treatment on January 11, 2018 with her pediatrician.

36. Plaintiff was diagnosed with a contusion of her right eye and a contusion to her forehead, among other injuries.

37. Thereafter, on July 9, 2018 all charges against plaintiff were dismissed and sealed.

38. As a result of the unlawful arrest and assault, plaintiff was forced to miss school on January 11, 2018.

39. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using excessive force, falsely arresting and imprisoning, maliciously prosecuting, and denying plaintiff the right to due process and a fair trial

40. The unlawful, search, seizure, assault, battery, use of excessive force, false arrest and imprisonment, maliciously prosecuting, malicious prosecution, denial of plaintiff's right to a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

### **FIRST CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth and Fourteenth Amendment Rights**

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied of his right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of his right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

43. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

## **SECOND CAUSE OF ACTION**

### **False Arrest and False Imprisonment**

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

46. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

49. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

## **THIRD CAUSE OF ACTION**

### **Unlawful Stop, Question, and Frisk**

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

52. The conduct of defendants in stopping, frisking, and searching plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

53. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

#### **FOURTH CAUSE OF ACTION**

##### **Unlawful Search**

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

59. Defendants lacked probable cause to search plaintiff.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

#### **FIFTH CAUSE OF ACTION**

##### **Violation of Plaintiff's Fifth and Fourteenth Amendment Rights**

##### **Denial of Right to Fair Trial/Due Process**

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein

65. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

66. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

67. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

68. In withholding/creating false evidence against plaintiff Jaylen Hudgins, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

69. As a result of the foregoing, plaintiff Jaylen Hudgins, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

## **SIXTH CAUSE OF ACTION**

### **Negligence**

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants owed a duty of care to plaintiff.

75. To the extent defendants claim that the injuries to plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against

him was unintentional, then the defendants breached that duty of care by slamming his head into the holding cell.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

77. All of the foregoing occurred without any fault or provocation by plaintiff.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **SEVENTH CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth And Fourteenth Amendment**

##### **Rights**

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The use of excessive force by defendants by, amongst other things, by macing and punching her in the face constituted objectively unreasonable physical seizures of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

83. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

### **EIGHTH CAUSE OF ACTION**

##### **Assault**

84. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

86. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **NINTH CAUSE OF ACTION**

#### **Battery**

90. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 89 with the same force and effect as if more fully set forth at length herein.

91. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner handcuffed plaintiff excessively tightly without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

92. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

## **TENTH CAUSE OF ACTION**

### **Negligent Infliction of Emotional Distress**

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Jaylen Hudgins. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

98. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

99. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

## **ELEVENTH CAUSE OF ACTION**

### **Negligent Hiring, Retention, Training and Supervision**

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

105. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

## **TWELVTH CAUSE OF ACTION**

### **Malicious Prosecution**

106. Plaintiff repeats and realleges paragraphs 1 through 105 as if fully set forth herein.

107. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

108. Defendants commenced and continued a criminal proceeding against plaintiff.

109. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

110. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

111. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

113. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

## **THIRTEENTH CAUSE OF ACTION**

### **Failure to Intervene**

114. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 113 with the same force and effect as if more fully set forth at length herein.

115. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to

intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

116. Defendants failed to intervene to prevent the unlawful conduct described herein.

117. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

118. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

119. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

120. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

121. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **JURY DEMAND**

122. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

## PRAYER FOR RELIEF

**WHEREFORE**, plaintiff Jaylen Hudgins demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
May 23, 2019

By: /s/  
STUART E. JACOBS  
DAVID M. HAZAN  
JACOBS & HAZAN, LLP  
Attorneys for Plaintiff  
30 Vesey Street, 4<sup>th</sup> Floor  
New York, NY 10007  
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007  
POLICE OFFICER ROBERT MALDONADO, Shield No. 20175, 84<sup>th</sup> precinct, 301  
Gold St, Brooklyn, NY 11201  
SERGEANT JASON GREGORY, 84<sup>th</sup> Precinct, 301 Gold St, Brooklyn, NY 11201

**ATTORNEY'S VERIFICATION**

**STUART E. JACOBS**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
May 23, 2019

\_\_\_\_\_  
/s/  
STUART E. JACOBS